

Federal Constitution

NOTES

Part X

See Art. 153(3) & 160(2) definition of “Office of profit”.

Art. 132

Clause (1)

- a. The words “police force” in paragraph *(d)* substituted for the words “police service” by Act 10/1960, paragraph 17(*a*), in force from 31-05-1960.
- b. *See* Art. 134(1), 135(1), (3) & 139(1).
- c. The word “and” was deleted at the end of paragraph *(f)* and new paragraph *(h)* was inserted by Act A193, section 2, in force from 01-01-1974.
- d. Paragraph *(e)* was deleted by Act A885, paragraph 28(*a*), in force from 24-06-1994. The original paragraph *(e)* read as follows:
“(e) the railway service;”.

Clause (2)

- a. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- b. *See* Public Officers (Conduct and Discipline) Regulations 1993 [*P.U. (A) 395/1993*].

Clause (2A)

- a. Added by Act 10/1960, paragraph 17(*b*), in force from 31-05-1960.
- b. The words “(e), (f) and (h)” substituted for the words “(e) and (f)” by Act A193, section 2, in force from 01-01-1974.
- c. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- d. The words “(e),” were deleted by Act A885, paragraph 28(*b*), in force from 24-06-1994.

Clause (3)

- a. The present Clause was inserted by Act 26/1963, section 58, in force from 16-09-1963, and replaced the earlier Clause which stood as follows at the date of the repeal:

“(3) Subject to Clause (4), references to persons in the public service or to members of any of the public services do not include references to the following, that is to say:

- (a) any Minister or Assistant Minister of the Federation and the Chief Minister or any other member of the Executive Council of a State;
- (b) a member of either House of Parliament or of the Legislative Assembly of a State;
- (c) the Clerk to either House of Parliament and any member of the staff of Parliament;
- (d) unless he has been appointed from among the members of the judicial and legal service or of the public service of his State, the legal adviser of any State;
- (e) a member of the personnel staff of the Yang di-Pertuan Agong or of a Ruler or Governor;
- (f) persons holding such diplomatic posts in the general public service of the Federation as the Yang di-Pertuan Agong may by order prescribe;

nor to a member of any Commission or Council established by this Constitution except that if he is a member of any of the public services in some other capacity, the said references include references to him in that capacity.”.

- b. The words “Federal Court, the Court of Appeal” substituted for the words “Supreme Court” by Act A885, paragraph 28(*c*), in force from 24-06-1994.

- (ii) the Secretary of the Religious Affairs Department;
- (iii) the Mufti;
- (iv) the Kadi Besar; or
- (v) a Kadi.

Joint services, etc.

133. (1) Joint services, common to the Federation and one or more of the States or, at the request of the States concerned, to two or more States, may be established by federal law.

(2) Where a member of any of the public services is employed—

(a) partly for federal purposes and partly for State purposes;
or

(b) for the purposes of two or more States,

the proportion, if any, of his remuneration payable by the Federation and the State or States concerned or, as the case may be, by each of the States concerned, shall, subject to federal law, be determined by agreement or, in default of agreement, by the Commission whose jurisdiction extends to him.

Secondment of officers

134. (1) The Federation may, at the request of a State, local authority, or statutory authority or of any organization, in or outside Malaysia, second any member of its public services to the service of that State, authority or organization, as the case may be; and a State may, at the request of the Federation, another State, a local authority or a statutory authority or of any organization, in or outside Malaysia, second any member of its own public service to the service of the Federation, other State, authority or organization, as the case may be.

(2) A person seconded under this Article shall remain a member of the service to which he belongs, but his remuneration shall be paid by the Federation, State, authority or organization, as the case may be, to whose service he is seconded.

Federal Constitution

NOTES

Art. 132—(cont.)

Clause (4)

- a. The present Clause was substituted by Act 26/1963, section 58, in force from 16-09-1963. The original Clause as it stood on Merdeka Day read as follows:
“(4) Clause (3) does not restrict the application of Articles 136 and 147.”.
- b. Paragraph (d) was added by Act 31/1965, section 2, in force in so far as it relates to Malacca as from 01-05-1960 and in so far as it relates to Penang as from 01-11-1959.
- c. In paragraph (c) the words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- d. Paragraph (a) was repealed by Act A837, section 6, in force from 20-11-1992.

Art. 133

See Art. 132(1)(f).

Clause (2): See Art. 179.

Art. 134

The present Article was inserted by Act A885, section 29, in force from 24-06-1994, and replaced the earlier Article which read as follows:

“134. (1) The Federation may, at the request of a State, second any member of any of the services mentioned in paragraph (a), (b), (c), (d) or (f) of Clause (1) of Article 132 to the service of that State; and a State may at the request of the Federation or of another State second any member of its own public service to the service of the Federation or, as the case may be, of that other State.

(2) A person seconded under this Article shall remain a member of the service to which he belongs, but his remuneration shall be paid by the State to whose service he is seconded or, if he is seconded to the service of the Federation, by the Federation.”.

Clause (2): See Art. 146D(1).

Restriction on dismissal and reduction in rank

135. (1) No member of any of the services mentioned in paragraphs (b) to (h) of Clause (1) of Article 132 shall be dismissed or reduced in rank by an authority subordinate to that which, at the time of the dismissal or reduction, has power to appoint a member of that service of equal rank:

Provided that in its application to members of the services mentioned in paragraph (g) of Clause (1) of Article 132, this Clause shall not apply to any law which the legislature of any State, other than Penang and Malacca, may make to provide that all powers and functions of a Public Service Commission of such State, other than the power of first appointment to the permanent or pensionable establishment, be exercised by a Board appointed by the Ruler of such State:

And provided further that this Clause shall not apply to a case where a member of any of the services mentioned in this Clause is dismissed or reduced in rank by an authority in pursuance of a power delegated to it by a Commission to which this Part applies, and this proviso shall be deemed to have been an integral part of this Clause as from Merdeka Day.

(2) No member of such a service as aforesaid shall be dismissed or reduced in rank without being given a reasonable opportunity of being heard:

Provided that this Clause shall not apply to the following cases:

- (a) where a member of such a service is dismissed or reduced in rank on the ground of conduct in respect of which a criminal charge has been proved against him; or
- (b) where the authority empowered to dismiss or reduce in rank a member of such a service is satisfied that for some reason, to be recorded by that authority in writing, it is not reasonably practicable to carry out the requirements of this Clause; or
- (c) where the Yang di-Pertuan Agong, or, in the case of a member of the public service of a State, the Ruler or Yang di-Pertua Negeri of that State, is satisfied that in the interests of the security of the Federation or any part

Federal Constitution

NOTES

Art. 135

Clause (1)

- a. *See* Art. 144(5A) & (5B).
- b. The word “(h)” substituted for the word “(g)” by Act A193, section 3, in force from 01-01-1974.
- c. Proviso was inserted by Act 27/1968, section 2, in force from 09-09-1968 and Act A31, section 5, in force from 24-03-1971.
- d. Further proviso was inserted by Act A354, paragraph 30(a), in force from 31-08-1957.

Clause (2)

- a. Proviso was inserted by Act A354, paragraph 30(b), in force from 27-08-1976.
- b. Further proviso was inserted by Act A442, section 3, in force from 31-08-1957.
- c. *See* Art. 160(5)(b).

Clause (3)

- a. The present Clause was inserted by Act 26/1963, subsection 53(1), in force from 16-09-1963. The earlier Clause which was repealed by Act 10/1960, section 18, in force from 31-05-1960, read as follows:

“(3) No member of any of the services mentioned in paragraph (e), (f) or (g) of Clause (1) of Article 132 shall, without the concurrence of the Judicial and Legal Service Commission, be dismissed or reduced in rank or suffer any other disciplinary measure for anything done or omitted by him in the exercise of a judicial function conferred on him by law.”.
- b. The words “paragraph (c)” substituted for the words “paragraph (e)” by Act A31, paragraph 5(c), in force from 24-03-1971.

thereof it is not expedient to carry out the requirements of this Clause; or

- (d) where there has been made against a member of such a service any order of detention, supervision, restricted residence, banishment or deportation, or where there has been imposed on such a member any form of restriction or supervision by bond or otherwise, under any law relating to the security of the Federation or any part thereof, prevention of crime, preventive detention, restricted residence, banishment, immigration, or protection of women and girls:

Provided further that for the purpose of this Article, where the service of a member of such a service is terminated in the public interest under any law for the time being in force or under any regulation made by the Yang di-Pertuan Agong under Clause (2) of Article 132, such termination of service shall not constitute dismissal whether or not the decision to terminate the service is connected with the misconduct of or unsatisfactory performance of duty by such member in relation to his office or the consequences of the termination involved an element of punishment; and this proviso shall be deemed to have been an integral part of this Article as from Merdeka Day.

(3) No member of any of the services mentioned in paragraph (c), (f) or (g) of Clause (1) of Article 132 shall, without the concurrence of the Judicial and Legal Service Commission, be dismissed or reduced in rank or suffer any other disciplinary measure for anything done or omitted by him in the exercise of a judicial function conferred on him by law.

Impartial treatment of federal employees

136. All persons of whatever race in the same grade in the service of the Federation shall, subject to the terms and conditions of their employment, be treated impartially.

Armed Forces Council

137. (1) There shall be an Armed Forces Council, which shall be responsible under the general authority of the Yang di-Pertuan Agong for the command, discipline and administration of, and

Federal Constitution

NOTES

Art. 136

See Art. 132(4) & 153(5).

all other matters relating to, the armed forces, other than matters relating to their operational use.

(2) Clause (1) has effect subject to the provisions of any federal law, and any such law may provide for the vesting in the Armed Forces Council of any functions with respect to the armed forces.

(3) The Armed Forces Council shall consist of the following members, that is to say:

- (a) the Minister for the time being charged with responsibility for defence, who shall be Chairman;
- (b) one member representing Their Royal Highnesses, who shall be appointed by the Conference of Rulers;
- (c) the Chief of Defence Forces who shall be appointed by the Yang di-Pertuan Agong;
- (d) a civilian member, being the person performing the duties of the office of Secretary General for Defence, who shall act as Secretary to the Council;
- (e) two senior staff officers of the Federation Armed Forces, appointed by the Yang di-Pertuan Agong;
- (f) a senior officer of the Federation Navy, appointed by the Yang di-Pertuan Agong;
- (g) a senior officer of the Federation Air Force, appointed by the Yang di-Pertuan Agong;
- (h) two, if any, additional members, whether military or civilian, appointed by the Yang di-Pertuan Agong.

(4) The Armed Forces Council may act notwithstanding a vacancy in its membership and may, subject to this Constitution and to federal law, provide for all or any of the following matters:

- (a) the organization of its work and the manner in which its functions are to be performed, and the keeping of records and minutes;
- (b) the duties and responsibilities of the several members of the Council, including the delegation to any member of the Council of any of its powers or duties;
- (c) the consultation by the Council with persons other than its members;

Federal Constitution

NOTES

Art. 137

Clause (3)

- a. The present Clause was substituted by Act 10/1960, section 19, in force from 31-05-1960. The earlier Clause read as follows:

“(3) The Armed Forces Council shall consist of the following members, that is to say—

 - (a) the Minister for the time being charged with responsibility for defence, who shall be chairman;
 - (b) one member representing Their Highnesses, who shall be appointed by the Conference of Rulers;
 - (c) the General Officer Commanding the Federation Army, who shall be appointed by the Yang di-Pertuan Agong and shall be Chief of Staff of the Federation Armed Forces;
 - (d) the senior staff officer of the Federation Army responsible for personnel and the senior staff officer of the Federation Army responsible for stores, equipment and quarters;
 - (e) any officer appointed by the Yang di-Pertuan Agong to command the Federation Navy or the Federation Air Force;
 - (f) a civilian member, being the person performing the duties of the office of Secretary for Defence, who shall act as secretary to the Council;
 - (g) one, if any, additional member, whether military or civilian, appointed by the Yang di-Pertuan Agong.”.
- b. The words “Federation Navy” in paragraph (f) and “Federation Air Force” in paragraph (g) substituted for respectively “Royal Malayan Navy” and “Royal Malayan Air Force” by Act 26/1963, section 70, in force from 16-09-1963.
- c. The words “Their Royal Highnesses” in paragraph (b) substituted for the words “Their Highnesses” by Act A31, section 2, in force from 24-03-1971.
- d. *See* Armed Forces Act 1972 [Act 77].
- e. The words “Chief of Defence Forces” substituted for the words “Chief of the Armed Forces Staff” by Act A1130, subsection 10(1), in force from 28-09-2001.

Notes:

1. Upon the coming into operation of Act A1130, every reference to the “Chief of the Armed Forces Staff” in all written laws shall be construed as a reference to the “Chief of Defence Forces”.
2. Any action taken by, in the name of or against the “Chief of Defence Forces” prior to the coming into operation of Act A1130 shall be deemed to have been validly and lawfully taken if the action could have been validly and lawfully taken by, in the name of or against the Chief of the Armed Forces Staff.

- (d) the procedure to be followed by the Council in conducting its business (including the fixing of a quorum), the appointment, at its option, of a vice-chairman from among its members, and the functions of the vice-chairman;
- (e) any other matters for which the Council considers it necessary or expedient to provide for the better performance of its functions.

Judicial and Legal Service Commission

138. (1) There shall be a Judicial and Legal Service Commission, whose jurisdiction shall extend to all members of the judicial and legal service.

(2) The Judicial and Legal Service Commission shall consist of—

- (a) the Chairman of the Public Services Commission, who shall be Chairman;
- (b) the Attorney General or, if the Attorney General is a member of Parliament or is appointed otherwise than from among members of the Judicial and Legal Service, the Solicitor General; and
- (c) one or more other members who shall be appointed by the Yang di-Pertuan Agong, after consultation with the Chief Justice of the Federal Court, from among persons who are or have been or are qualified to be a judge of the Federal Court, Court of Appeal or a High Court or shall before Malaysia Day have been a judge of the Supreme Court.

(3) The person who is secretary to the Public Services Commission shall be secretary also to the Judicial and Legal Service Commission.

Public Services Commission

139. (1) There shall be a Public Services Commission, whose jurisdiction shall, subject to Article 144, extend to all persons who are members of the services mentioned in paragraphs (c) and (f) of Clause (1) of Article 132, other than the Auditor General, to members of the public services of the State of Malacca and the State of Penang, and, to the extent provided by Clause (2), to members of the public service of any other State.